

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Magdalena Azmitia	Team: Squad #03	CCRB Case #: 201803437	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 05/01/2018 12:00 AM, Wednesday, 05/02/2018 11:00 AM	Location of Incident: In front of § 87(2)(b) [REDACTED]	18 Mo. SOL 11/2/2019	Precinct: 113
Date/Time CV Reported Thu, 05/03/2018 9:43 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/03/2018 9:43 AM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. SGT Diego Dejesus	4128	943134	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Brian Davis	22022	934720	HARBOR
2. POM Ariel Klepadlo	24084	964096	113 PCT
3. POM Edwin Vasquez	25176	943916	113 PCT
4. POM William Walsh	09488	958161	113 PCT
5. POM Kyle Slater	09805	957172	113 PCT
6. POM Brendan Tenny	17525	961362	113 PCT
7. POM John Ortega	10354	961042	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Diego Dejesus	Discourtesy: Sergeant Diego Dejesus spoke discourteously to § 87(2)(b) [REDACTED]	A . Unsubstantiated
B . SGT Diego Dejesus	Abuse: Sergeant Diego Dejesus threatened to arrest § 87(2)(b) [REDACTED]	B . Unsubstantiated
C . SGT Diego Dejesus	Abuse: Sergeant Diego Dejesus forcibly removed § 87(2)(b) [REDACTED] to the hospital	C . Substantiated

Case Summary

On May 3, 2018, § 87(2)(b) filed this complaint over the telephone with the CCRB.

On May 2, 2018, at approximately 11:00 A.M., § 87(2)(b) went to his home at § 87(2)(b) in Queens and called 911 to report trespassers in the home and to request police assistance because he knew that a woman in the house had an order of protection against him. Sgt. Diego Dejesus of the 113th Precinct and PO Brian Davis, who was assigned to the 113th Precinct at the time but has since been reassigned to the Harbor Unit, responded to the location. Sgt. Dejesus allegedly told § 87(2)(b) to “get the fuck out” or he would be arrested (**Allegation A: Discourtesy,** § 87(2)(g) **Allegation B: Abuse of Authority,** § 87(2)(g)). The officers then left the scene. § 87(2)(b) called police again, and the same officers responded, placed him in handcuffs, and disregarded his complaints that the handcuffs were too tight and cutting into his hand. EMS responded, and § 87(2)(b) was taken to § 87(2)(g), § 87(2)(b) (**Allegation C, Abuse of Authority:** § 87(2)(g)).

Findings and Recommendations

Allegation (A) Discourtesy: Sergeant Diego Dejesus spoke discourteously to § 87(2)(b)

Allegation (B) Abuse of Authority: Sergeant Diego Dejesus threatened to arrest § 87(2)(b)

In his interview at the the CCRB, § 87(2)(b) stated that he had just been released from central booking following a prior arrest and had returned to his home [BR 03]. § 87(2)(b) had not gone into the house but knew that there was a woman inside who had an order of protection against him, and he believed there were other people in the home as well because the windows were open. He called 911 to report trespassers in the home and requested police assistance so that he did not violate the order of protection. Sgt. Dejesus and PO Davis arrived at the location, and § 87(2)(b) spoke with them in front of the house. They were the same officers who had arrested § 87(2)(b) two days before. Sgt. Dejesus and PO Davis asked what § 87(2)(b) was doing and why he was calling and told him that he had to leave the location. § 87(2)(b) attempted to show them paperwork to prove that he lived in the house, and Sgt. Dejesus told him to “get the fuck out” or he would be arrested.

Sgt. Dejesus testified to the CCRB that when he arrived at the location, § 87(2)(b) told the officers that he the woman on the first floor of the home did not live there, and that he owned the house and wanted her out of the apartment [BR 07]. § 87(2)(b) was unable to produce any documentation to prove that he owned the house. Sgt. Dejesus and PO Davis spoke to the woman in the house and learned that she owned the house, and as a result she could not be removed from the apartment. Sgt. Dejesus also learned that the woman had an order or protection against § 87(2)(b). Sgt. Dejesus went back outside and told § 87(2)(b) as much, and § 87(2)(b) began yelling and screaming, as well as pacing back and forth in front of the house. Sgt. Dejesus and PO Davis told § 87(2)(b) to leave the area because of the order of protection. He did not tell § 87(2)(b) to “get the fuck out” and did not hear any other officers do so. Sgt. Dejesus did not recall whether he told § 87(2)(b) that he could be arrested if he did not leave the area and did not recall hearing any other officers do so. He did not recall using profanity when speaking with § 87(2)(b) or hearing other officers do so.

PO Davis § 87(2)(g) did not recall the incident [BR 06]. He did not recall responding to the location and did not recognize § 87(2)(b)'s photo when it was shown to him at the time of his interview. He did not recall hearing Sgt. Dejesus use profanity when speaking to § 87(2)(b) or threaten to arrest § 87(2)(b).

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Diego Dejesus forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) testified to the CCRB that after Sgt. Dejesus and PO Davis left the location, he went across the street to an antique store at Sutphin Boulevard and Linden Boulevard and called 911 again, requesting a higher-ranking officer [BR 03]. Sgt. Dejesus and PO Davis responded again, immediately told § 87(2)(b) to get up, at which point he was handcuffed and sat down in a chair in front of the antique store. § 87(2)(b) could not recall what the officers were doing during the time he was handcuffed but noted that he was told an ambulance was coming. Approximately 10-15 minutes later, an ambulance arrived, and Sgt. Dejesus and PO Davis put § 87(2)(b) inside of it. He spoke with EMTs, who asked him several questions, including whether he was suicidal, which he was not. § 87(2)(b) initially stated that he did not recall if other officers responded to the scene, but later stated that an unidentified officer accompanied him in the ambulance to the hospital. § 87(2)(b)

Sgt. Dejesus testified that he and PO Davis responded to the location at approximately 11:50 A.M., when they met again with § 87(2)(b) who had walked away from the house and was near § 87(2)(b) [BR 07]. § 87(2)(b) again stated that he wanted to go into the house and get the woman out of the apartment. He continued to pace back and forth while yelling and repeating the same statements over and over again. Sgt. Dejesus did not recall what conversation took place between § 87(2)(b) and officers. After approximately 10-20 minutes, Sgt. Dejesus made the decision to call an ambulance for § 87(2)(b) because of the way he was screaming and repeating himself and not listening. § 87(2)(b) was not making any threatening statements at the time and did not make any physical movements aside from pacing and waving his arms. § 87(2)(b) did not appear to be a threat to others at the time EMS was called. Sgt. Dejesus noted that he did not know whether § 87(2)(b) appeared to be a threat to himself at the time but noted that § 87(2)(b) was acting abnormally in the way he was yelling and pacing. EMS arrived approximately five to ten minutes later. During that time, § 87(2)(b) was placed in handcuffs for safety reasons and told to sit on the ground. Sgt. Dejesus stated that § 87(2)(b) was handcuffed in case his behavior escalated but noted that it had not escalated at the time the handcuffs were placed on him. Sgt. Dejesus did not recall whether EMS spoke with § 87(2)(b) on scene and did not hear any conversation between them. Sgt. Dejesus noted that a response auto unit arrived and escorted § 87(2)(b) to the hospital but did not recall which officers responded or at what

point. Sgt. Dejesus did not recall whether the other responding officers spoke with § 87(2)(b). Sgt. Dejesus did not recall speaking to EMS on scene, or whether any officer spoke with EMS.

PO Edwin Vasquez, PO William Walsh, PO Kyle Slater, PO Ariel Klepadlo, and PO John Ortega, all of the 113th Precinct, were all assigned to different response auto units on the day of the incident and testified that they were elsewhere at the incident time [BR 08, 09, 10, 11, 12, 13]. They did not respond to the location or interact with § 87(2)(b) on the incident date. PO Davis also did not recall being present for § 87(2)(b)'s removal to the hospital [BR 06].

§ 87(2)(b) who was an EMT at the time of the incident and who responded to the location when Sgt. Dejesus called for EMS, did not recall the incident until he reviewed the Prehospital Care Report summary [BR 05]. § 87(2)(b) did not recall whether he spoke with § 87(2)(b) or with the officers on scene but noted that § 87(2)(b) was “verbally aggressive” towards the officers and repeatedly stated that he did not want to go to the hospital. § 87(2)(b) did not recall any specific statements that § 87(2)(b) made, but noted that he was loud. § 87(2)(b) also mumbled under his breath throughout the incident and the statements he made did not make sense.

EMT § 87(2)(b) responded to the scene with § 87(2)(b) and her testimony to the CCRB was consistent with that of § 87(2)(b) with the following exceptions [BR 04]. When she arrived at the scene, § 87(2)(b) was yelling and was upset that officers told him he needed a psychological evaluation. The officers informed EMT § 87(2)(b) that § 87(2)(b) had been repeatedly calling 911 all day. Officers had responded multiple times during the day and ultimately the sergeant made the decision that § 87(2)(b) needed a psychological evaluation. § 87(2)(b) made several complaints in EMT § 87(2)(b)'s presence, none of which made sense. EMT § 87(2)(b) did not remember any specific statements § 87(2)(b) made but agreed that § 87(2)(b) needed a psychological evaluation.

EMS Electronic Prehospital Care Report obtained from FDNY notes that § 87(2)(b) was sitting outside of a store with the officers on scene at the time of EMS arrival [Privileged Documents 01]. Officers stated that § 87(2)(b) had called 911 multiple times and was not making sense. § 87(2)(b) was rambling, yelling, and acting erratically, and his story did not make sense. Sgt. Dejesus called EMS because he believed the patient needed a psychological evaluation.

§ 87(2)(b)'s medical records from § 87(2)(b) note that § 87(2)(b) § 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

NYPD Patrol Guide Procedure 221-13 provides guidelines for addressing an emotionally disturbed person, which is defined as a person who appears mentally ill or temporarily deranged and conducting himself in a manner which an officer reasonably believes is likely to result in serious injury to himself or others [BR 15].

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three CCRB complaints [BR 17]:
 - § 87(2)(b) [REDACTED]
 - [REDACTED]
 - [REDACTED]
- Sgt. Dejesus has been a member of service for 11 years and this is the first CCRB complaint to which he has been a party.

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation.
- On December 17, 2018, a request to determine if a Notice of Claim was filed was submitted; confirmation from the Office of the New York City Comptroller will be forwarded upon receipt [BR 14].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 3

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer:

Signature

Print Title & Name

Date